ORDER SHEET.

IN THE ISLAMABAD HIGH COURT, ISLAMABAD.
JUDICIAL DEPARTMENT.

I.T.R. NO.89-2015

Commissioner Inland Revenue
Vs
M/s Pakistan Telecommunication Company Ltd.

S. No. of order/ proceedings	Date of order/ proceedings	Order with signature of Judge and that of parties or counsel where necessary.
	07.05.2025	**Mr.Atif Rahim Barqi, Advocate Applicant. Mr. Muhammad Usman Shaukat, Advocate for Respondent.**

1. This is an Income Tax Reference filed by the Applicant under Section 133 of the Income Tax Ordinance, 2001 **("Income Tax Ordinance")** challenging the Order dated 31.7.2012 passed by the Appellate Tribunal Inland Revenue, Islamabad.

2. Since the Respondent is a State-owned enterprise, therefore, it would be appropriate that the forum for Alternate Dispute Resolution Committee **("ADRC")** provided under Section 134-A of the Income Tax Ordinance be invoked for the resolution of the matter raised in the instant Reference.

3. In this regard, the Hon'ble Chief Justice of Pakistan, while deciding Civil Petition No.5178/2023 titled *"Commissioner Inland Revenue (Zone-I) Large Taxpayers Office, Islamabad vs. M/s Pakistan Television Corporation Limited, Constitution Avenue, Islamabad"*, has held that:-

For reading only

> *"2. We note that the request made by the Director-Genreal (Law), Federal Board of Revenue, representing the petitioner is reasonable and has invoked the relevant provisions of the law. It is high time that matters of State-owned entities be resolved within the mechanism provided under the law.*
>
> *3. In view of the above, this petition is disposed of with the direction to refer the same to the forum of Alternative Dispute Resolution Committee provided under Section 47A of the Sales Tax Act, 1990 for resolution of the matter.".*

4. Relying upon the above judgment of the august Supreme Court of Pakistan, the matter in hand is accordingly referred to the forum of ADRC for its fair and lawful settlement under the above said provision of law.

5. **Disposed of**, accordingly.

6. Office is directed to transmit a copy of the decision under seal of the Court to the Appellate Tribunal pursuant to Section 133 of the Income Tax Ordinance.

For reading only

(INAAM AMEEN MINHAS)
JUDGE

(MUHAMMAD AZAM KHAN)
JUDGE

Announced in the open Court on this _____ day of May 2025.

JUDGE **JUDGE**